

make burrows in other places than hath been used from the time of which, &c. unless he hath warren by grant, and then he may use it according to his grant; but he cannot erect a new warren without charter.

4. It was resolved, that he who hath such a warren may lawfully build upon his inheritance, within his warren, a convenient lodge for preservation of his game.

5. It was said by Popham, Chief Justice, that it was adjudged in the time of the Chief Baron Brett, in the Exchequer, that a man may prescribe to cut his wood upon his own inheritance within a forest (B), although it was against the Act in the 43 Ed. 1. which is in the Abridgment, title [23] Forest 21. And this was the case of Sellenger, for cutting wood in the forest of Hay, in the county of Hereford: and their reason was for that this was but a declaration of the common law, and it may be tolled by custom, as Littleton said; *vide* 2 Ed. 2. title Trespass, fol. 9. in the time of Ed. 1. Trespass 239. Plowd. Com. Dyer 72. 332. 2 Ed. 4. cap. 7. that the subject may have a forest: but this is intended if he hath power to have swannymotes and justices in eyre and foresters appendant to the forests (C).

Consuetudo ex rationabili causa usitata privat communem legem: and it was held by some that this was but an ordinance, and not any Act of Parliament. Q.

[23] FLOYD AND BARKER.

Pasch. 5 Jacobi Regis.

In the Star-Chamber.

[*Kemp v. Neville*, 1861, 10 C. B. N. S. 550; *Dawkins v. Lord Rokeby*, 1873-75, L. R. 8 Q. B. 263.]

When a grand inquest indicts one of murder or felony, and after the party is acquitted, no writ of conspiracy lies for him against the indictors.

If a witness conspire out of Court, and afterwards swear in the Court, the party acquitted may have a writ of conspiracy against him.

When a party indicted is convicted of felony, upon not guilty pleaded, he shall never have a writ of conspiracy.

Where a party is convicted or attainted of murder or felony, none of the parties to the proceedings are to be drawn in question in the Star-Chamber, or elsewhere, for any conspiracy.

Nor in such cases shall a Judge be charged before any other Judge at the suit of the King.

Records are of so high a nature, that for their sublimity they import verity in themselves, and none shall be received to aver any thing against the record itself.

Vide post. 32. 91, 92. 99. &c. 1 Hawk. ch. 72. *per totum.*

In this very term, between Rice ap Evan ap Floyd, and Richard Barker, one of the justices of the grand sessions in the county of Anglesey, and other defendants: it was resolved by Popham and Coke, Chief Justices, the Chief Baron, and Egerton, Lord Chancellor, and all the Court of Star-Chamber, that when a grand inquest indicts one of murder or felony, and after the party is acquitted, yet no conspiracy (A) lies for him who is acquitted, against the indictors, for this that they are returned by the

(B) In Jenk. Cent. 230. it is said, that the owner of a freehold in a wood, in a forest, may cut down any wood there without the licence or view of the forester *without a prescription*. But this is contrary to Co. Litt. 115 a., and appears not to be law. Such a prescription is, it seems, good; but it has been denied. *Vid.* Mr. Hargrave's note (15). Co. Litt. 115 a.

(C) N. B. "In 4 Inst. 298. is an accurate account of these resolutions: but what is here reported as the fifth resolution, is there totally omitted."—*Note in Serjt. Hill's copy.*

(A) *Vid.* note (B) *The Poullterers' case*, 9 Co. 57 a.